

Project # 570-23-223
Fresno Renovate Building 1, 1st Floor Acute Respiratory Clinic

Statement of Work

1. PROJECT OVERVIEW

1.1 PURPOSE:

The Department of Veterans Affairs (VA) intends to renovate the existing space to create an acute respiratory clinic (ARC) at the front of building 1, main hospital. Space will include a secondary front entrance into a separated clinic suite where seasonal flu and pandemic triage procedures may be followed. The intent of the clinic is to serve a dual function. During normal operating conditions it shall be an expansion of Primacy Care (PC) space or procedure space. When activated in response to seasonal influenza or future pandemic measures the suite will be isolated with controlled access, a designated entrance for patients presenting for care, and negative pressure HVAC system.

2. SCOPE OF WORK

2.1 GENERAL:

Provide all labor, materials, supplies, tools and equipment, supervision, excavation, demolition, temporary utilities, temporary services, project management and construction services necessary for the project. The contractor is to conduct all necessary testing with reports along with support for commissioning activities. All work detailed in drawings and specifications shall be performed. The contractor shall submit a Request for Information to clarify any work or unforeseen issues. Construction will comply with plans, specifications and applicable VA design guides.

2.2 WORK SUMMARY

The base portion of the project will include all labor, material, equipment and supervision to perform the required construction work to create new clinic space, associated work in adjacent spaces, roof, and basement.

Work summary includes:

Architectural construction associated with demolition and installation of new walls, doors, ceilings, flooring and provisions for equipment as detailed in drawings throughout space including infection control in coordination with anticipated work for all spaces requiring construction in accordance with VA coordination and approval.

Mechanical demolition of indicated duct and equipment for installation of new dedicated exhaust fans on OPC penthouse roof, routing of new exhaust ductwork to space, and reinstallation of duct within space that includes bubble tight dampers, room pressure monitors, and controls for operation of space as described. Re-routing of existing chilled water lines in casket lift raising from basement to first floor ceiling to recapture space for waiting room and testing and balancing of space to balance room pressures, controls as needed.

Structural reinforcement of OPC penthouse decking to support new exhaust fans, new floor of partial

casket lift, and modifications to exterior slab for new entryway. Plumbing work to include configuration of pipe routing throughout space for reconfigured rooms basement as indicated.

Electrical work for disconnect and reconnect of new lighting, receptacles, telecom, low voltage equipment as indicated throughout space. New power accommodations for new mechanical equipment as indicated.

A site visit is required prior to bidding.

Existing equipment and utilities shown in the construction documents have been identified from existing as-built drawings available from the facility and verifiable observations on site during the period of design. The VA and design professionals make no guarantees that the conditions at the time of construction are in the exact locations identified. Contractor needs to verify amounts and existing conditions. If there is a discrepancy in the amounts provided and or any condition affecting work shall be brought to the attention of the VA Representative before proceeding with the work.

The Contractor shall furnish the COR with a schedule of approximate phasing dates as required by the scope of work. In addition, Contractor shall notify the COR two weeks in advance of the proposed date of starting work in each activity or portion thereof. The Contractor is responsible for maintaining, monitoring and support for the temporary systems during each phase of the project.

The Contractor shall be responsible for obtaining and coordinating the services of any and all third-party Contractors performing other services on site and other entities as part of the contract to ensure the expected quality, timely delivery, and documented final product.

O&M Manuals, As-Built drawings in CAD and PDF, applicable permits, and installation, are also required.

Normal hours of operation for VA sites are 8:00AM to 4:00 PM Monday through Friday except for Federal Holidays. If the Contractor desires to work on Saturday, Sunday, holidays, or outside the project site's normal working hours the contractor must submit a written request for approval to the VA-COR at least five (5) working days prior to the proposed start of such work.

2.3 DESCRIPTION OF WORK

- a. Before disabling any of the following systems, the contractor needs to coordinate with COR at least 10 working days in advance. Contractor shall be responsible for relocating and temporary installing all utilities and controls, including, but not limited to, telephone, data, electrical, med/gas, emergency power, AV alarms, smoke detectors, sprinklers heads, speakers, nurse call, card readers, isolation monitor, phone booster, WIFI boosters, pull stations, etc. It is the contractor's responsibility to immediately repair any tampered with system at no additional cost to the government.
- b. Contractor will coordinate all work with existing work to remain and existing conditions.
- c. Contractor shall be responsible for complying with all the construction documents and applicable Department of Veterans Affairs Master Specifications as part of this project.
- d. Contractor shall perform all utility tracing including but not limited to Fire Alarm, Electrical, Plumbing, HVAC, Nurse Call, BAS Controls, or Security.
- e. Contractor must also comply with all applicable city, county, state, and federal regulations / codes and applicable OSHA standards project. Construction shall also comply with Infection Control Risk Assessment (ICRA), CLASS IV, and IC standards delineated in the specifications.
- f. On-site staging WILL be provided in VA premises in Parking Lot C, coordinate with COR.
- g. There will be NO contractor parking allowed on the VA campus.

- h. Demolition and renovation shall take place with minimal disruption to adjacent workspaces.
- i. Demolition debris shall be recycled to the best ability of the contractor. Reports of weight and deposition of all waste are to accompany the monthly progress payments (C&D Waste Form attached). Form also included in corresponding specification.
- j. Any item damaged during removal is the contractor's responsibility to replace with no additional cost to the government.
- k. All work shall be in accordance with VA specifications. All costs shall be included in the base bid. All work shall be coordinated with the VA prior to any demolition work being performed.
- l. Contractor is to remove without damaging, save and provide to the VA COR any existing Single Line Diagrams discovered throughout the project area.

B. Additional Requirements

- a. **Housekeeping** - Accumulation of trash, paper, wood shavings, sawdust, excelsior, boxes and other packing materials will be cleaned up as often as necessary and at the end of each workday.
- b. **False Alarms** – Fire Department response fees for false alarms caused by the contractor will be paid by the contractor. To avoid this, dust covers for smoke detectors and alarms are required to be used while construction work is ongoing. These covers shall be removed at the end of the construction work shift to keep them operational.
- c. **Fire Watch** - Provide fire watch for impairments more than 4 hours in a 24-hour period. Request interruptions in accordance with Article, OPERATIONS AND STORAGE AREAS, and coordinate with COR and facility safety officer. All existing or temporary fire protection systems (fire alarms, sprinklers) located in construction areas shall be tested as coordinated with the medical center. Parameters for the testing and results of any tests performed shall be recorded by the medical center and copies provided to the COR.
- d. **Smoking** is strictly prohibited in all facilities, near flammable liquids, highly combustible materials. Smoking is only authorized in designated smoking areas.
- e. **Security** – Contractors will wear security badge in plain sight above the waist at all times. Contractors found without a badge will be immediately removed from VA property by VA Police.
- f. **Parking** – Contractor vehicles found parked in VA parking lots will be issued a United States District Court Violation Notice and immediately removed and banned from VA property.
- g. **Tuberculosis (TB)** – Contractor is responsible for ensuring that if contracted construction worker(s) have been determined to be at risk for transmission of TB based upon the TB pre- construction risk assessment. The contractor must provide written certification, **within 24 hours** upon request, to the COR that all contract employees assigned to the work site have had a pre- placement tuberculin screening within 90 days prior to assignment to the work site and been found to be free of active TB. Refer to the contract documents for this requirement.
- h. **OSHA 10 & 30 -Hour Training Course** – All construction workers are required to have the OSHA 10-hour Construction Safety training certification. The construction safety manager and/or superintendent shall have the 30-hour Construction Safety course certification. Proof of certification shall be on site at all times.
- i. **Infection Control (IC) and Safety**– All contractors, construction workers and COR's must attend the Infection Prevention training every fiscal year. All construction workers shall have a current IC training sticker attached to their badges at all times. If this requirement is not met, workers will be

removed from construction site. Refer to construction documents for additional information.

- j. Construction sign and copy of IC permit shall be posted in project site at all times. All IC and dust control measures shall be implemented at all times.
- k. All fire and smoke wall penetrations shall be fireproofed according to corresponding wall rating. These shall be through a sleeve and sealed with fire barrier compound to be approved by VA.
- l. All construction and installation work shall comply with VA specifications for material and workmanship, NEC, NFPA and all applicable city, county, state, and federal regulations and codes and OSHA standards. Refer construction drawings and specs for requirements.
- m. All incidental work associated with the installation and construction works in the exterior and interior of the building shall be included in the base bid.
- n. All IT installation shall be PANDUIT certified.
- o. Conduct work as to interfere as least as possible with facility operations. All coordination for utilities shutdown shall be coordinated at least 72 hours prior to event with COR. For major utility system shutdowns, coordination shall be done at least 2 weeks in advance.

2.4 OTHER DELIVERABLES

- A. Period of Performance: 224 Calendar days after Notice to Proceed
- B. Performance and Payment bonds: Due 10 Calendar days after Notice of Award
- C. Proof of Insurance: Due 10 Calendar days after Notice of Award
- D. Project Schedule: Project schedule shall be provided and approved 30 days after NTP
- E. Contractor Quality Control Plan (CQCP): The contractor shall develop a quality control plan and *shall furnish to VA for review no later than 30 calendar days after the receipt of notice to proceed*. The plan shall identify personnel, procedures, control, instructions, tests, records, and forms to be used. VA will consider an interim plan for the first 45 calendar days of operation. *Installation will be allowed to begin only after acceptance of the CQCP or acceptance of an interim plan applicable to the particular feature of the work to be started*. Work outside of the features of the work included in an accepted interim plan will not be permitted to begin until acceptance of a CQCP or another interim plan containing the additional features of the work to be started. After acceptance of the CQCP, the Contractor shall notify the Contracting Officer Representative (COR) in writing of any proposed change. Proposed changes are subject to acceptance by the Contracting Officer.
- F. Safety Plan: Contractor shall develop and implement a Comprehensive safety plan to eliminate injuries occurring relative to providing the design and installation services for this project. Contractor *shall furnish to VA for review no later than 15 calendar days after the receipt of notice to proceed*. The plan shall also describe how final system installation will meet all applicable requirements of NFPA30 and NFPA30A. *Construction/Renovation work will be allowed to begin only after VA's acceptance of the Safety Plan*. Contractor is responsible for providing enough project lead time to allow for VA review of Safety Plan before acceptance. The Department of Labor OSHA requires that all Contractors involved in installation on VA owned or leased property comply with the Incorporation of General Industry Safety and Health Standards applicable to Installation Work and Technical Amendments, Final Rule 29 CFR Parts 1910 and 1926 as published in the Federal Register Volume 58, No. 124, June 30, 1993. In addition, any Contractor that performs construction type work on any VA project as defined by the Scope of the referenced regulation is required to; (1) Provide and maintain his own protective equipment and devices, etc.; and (2) Require all sub- contractors used on site to follow these same provisions in the regulation.
- G. Operations and Maintenance Manuals (O&M): The Contractor shall provide three (3) complete sets of O&M manuals including a recommended spare parts list identifying components adequate for competitive

supply procurement for operation and maintenance of the system. The O&M Manuals shall include maintenance and inspection of all equipment. A three-ring binder containing all of the O&M and electronic files on CD-ROM shall be provided within the binder.

H. Submittals CD: As part of the closeout documentation, the contractor shall provide the COR:

a. 4 CDs containing all the approved submittals.

I. Warranty: Contractor shall provide a minimum one (1) year warranty, unless specified otherwise in the specs, from both the manufacturer and installer including parts and labor to include normal, premium or holidays hours. The Warranty period shall start on the date of Substantial Completion.

2.5 ACCEPTANCE

A. For the purposes of Warranty and payment for the work performed at a location, government "Acceptance" will be provided by the VA upon the completion of all of the following:

a. The Contractor has provided O&M manuals.

b. The Contractor has provided Record drawings to include a CD with all as builds CAD files, one full set, one half set and one Mylar full set.

2.6 CONFIDENTIALITY AND NONDISCLOSURE

A. The preliminary and final deliverables and all associated working papers, application source code, and other material deemed relevant by the VA which has been generated by the contractor in the performance of this Order are the exclusive property of the U.S. Government and shall be submitted to the VA-COR at the conclusion of the contract.

B. The Contracting Officer will be the sole authorized official to release verbally or in writing any data, the draft deliverables, the final deliverables, or any other written or printed materials pertaining to this contract. No information shall be released by the contractor. Any request for information relating to this contract presented to the contractor shall be submitted to the CO for response.

C. Press releases, marketing material or any other printed or electronic documentation related to this project, shall not be publicized without the written approval of the CO.

D. To the extent that the work under this contract requires that the contractor be given access to proprietary business, technical or financial information belonging to the Government or other companies, the contractor shall treat such information as proprietary business sensitive and agrees not to appropriate such information to its own use or to disclose such information to third parties unless specifically authorized by the CO in writing. A mutually agreed to agreement for exchange of sensitive information or nondisclosure agreement may be required.

E. General Requirements for Privacy Information:

- Information Systems Officer, Information Protection: The contractor will not have access to VA Desktop computers, nor will they have access to online resources belonging to the government while conducting services.
- Privacy Officer: The contractor will not have access to Patient Health Information (PHI) nor will they have the capability of accessing patient information during the services provided to the VA.
- Records Manager: There will be no federal records created, maintained, used or dispositioned with this contract; regardless of format [paper, electronic, etc.] or mode of transmission [e-mail, fax, etc.].

CONSTRUCTION DURATION AND WORK HOURS/DAYS

The total contract duration shall be 224 consecutive calendar days from issuance of the Notice to Proceed.

The budget for funding the designed construction portion of this project is \$2,080,000

Normal work hours for the contract are from 8:00 AM to 4:00 PM, unless specifically noted otherwise. The Contractor may request alternate working hours or additional working hours to meet project requirements. Requests shall be made to the Contracting Officer Representative (COR) in writing.

The contractor is beholden to the City of Fresno Municipal Code criteria for Construction Noise and shall request work hour exceptions in accordance with permissible criteria.

New Year Day
Martin Luther King's Birthday
Washington's Birthday
Memorial Day
Juneteenth National Independence Day
Independence Day
Labor Day
Columbus Day
Veterans Day
Thanksgiving Day
Christmas Day

3. SUBMITTALS, REQUESTS FOR INFORMATION (RFI) AND REQUESTS FOR DEVIATION (RFD)

- a) The contractor is responsible for the timely submission of all submittals, shop drawings, and coordination drawings in accordance with drawings and specifications. The contractor shall allocate a minimum of fourteen (14) calendar days for the VA and A/E to conduct its evaluation of all submittals. The contractor is responsible for all time delays associated with submittals requiring re-submission.
- b) The contractor shall allocate a minimum of fourteen (14) calendar days for the VA and A/E to respond to Requests for Information (RFI). The contractor shall submit RFI's as early as possible. The contractor is responsible for the coordination of all Contract Documents. All time delays associated with the failure to timely submit RFI's related to the Contract Documents shall be the responsibility of the contractor.
- c) Contractor's Requests for Deviation (RFD) shall be submitted for the VA's consideration a minimum of twenty-one (21) calendar days in advance of the requested response date. The VA reserves the right to deny requests for deviation at any time regardless of reason. Request for Deviation responses, may include necessary consideration to the government as terms of approval.

4. PROGRESS PAYMENTS

The contractor shall submit a Schedule of Values to the VA for review and approval within fourteen (14) calendar days of the Notice to Proceed. The Schedule of values shall be itemized in accordance with the project specification Divisions. Line items shall also be developed for individual General Requirements components including but not limited to submission and approval of as-built documentation and Operation and Maintenance (O&M) Manuals.

Progress payments applications may be submitted to the VA on regularly scheduled intervals and must be reviewed and returned with approval signature prior to submission for payment.

Progress payments will be reviewed contingent on the following being completed at the time of submission:

- a) Two (2) sets of As-built red marked drawings shall be current and available on the project site for review by the COR.
- b) Waste Manifests for the progress payment interval shall be submitted to the COR.
- c) Certified payroll for the progress payment interval shall be submitted to the COR.
- d) The project schedule with Critical Path identified shall be current (no more than 10 days behind schedule). A revised schedule shall be submitted to the COR and Contracting Officer to identify measures planned to become in compliance with the Contract Duration limitations.
- e) Contractor daily logs and Quality Control plans during the interval of the progress payment shall be up to date.
- f) Punch-list and re-work items identified by the VA or through the Contractors Quality Control plan shall have been corrected or a written action plan shall be provided to identify method and date of corrective action plan.
- g) All safety deficiencies shall have been corrected.

Failure to comply with any of the above will result in the rejection of the contractor's request for progress payment review. The VA will review requests for payment only after each of the above items is complied with.

5. ADDITIONAL REQUIREMENTS

The contractor is required to comply with all facility and City of Clovis or governing jurisdiction's standards for safety, security, SWPP, and dust control standards. Policies will be made available to the contractor at the Notice to Proceed meeting.

For execution of work activities, the contractor may be required to employ various professional services including but not limited to engineering, consulting, and/or surveying. Professional services required for the execution of work activities shall be performed at no additional cost to the government.

6. DEFINITIONS:

- A. Contract Documents: All documents included and referenced in the executed contract. This includes the contract and references and the construction documents.
- B. Construction Documents: All documents which identify the scope of work to be performed by the contractor. This includes the construction drawings, the specifications, the scope of work and all references included in the above documents.
- C. Contracting Officer (CO): The services to be performed under this contract are subject to the general supervision, direction, control and approval of the Contracting Officer.
- D. Contracting Officers Representative (COR): The Contracting Officer's authorized representative at the construction site. His/Her duties include surveillance of all construction work to assure compliance with the contract documents, interpretation of the contract documents, approval of changed work, approval of all submittals, samples, shop drawings, etc.
- E. A/E: Refers to the Architect-Engineer firm that prepared and produced the construction drawings and construction specification documents for subject project.

7. ATTACHMENTS:

1. 570-23-223 Drawings
2. 570-23-223 Specifications

Draft